

Planning and Building Control
2 Bristol Avenue, Colindale, London, NW9 4EW
Contact Number: 0208 359 7347

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ET Planning
200 Dukes Ride
Crowthorne
RG45 6DS

Application Number: **25/0574/RCU**
Registered Date: 28 February 2025

TOWN AND COUNTRY PLANNING ACT 1990

REFUSAL OF PLANNING PERMISSION FOR RETENTION/CONTINUED USE

TAKE NOTICE that the Barnet London Borough Council, in exercise of its powers as Local Planning Authority under the above Act, hereby:

REFUSES PLANNING PERMISSION for:

**Use of the existing ancillary swimming pool building for commercial operations
(Retrospective application)**

At: 30 Allandale Avenue, London, N3 3PJ,

as referred to in your application and shown on the accompanying plan(s):

For the following reason(s):

- 1 The introduction and continued operation of commercial swimming lesson activity within the private garden and pool outbuilding has resulted in a material change of character on the site, through regular comings and goings, the congregation of visitors and a commercialised pattern of activity. The use is harmful to the established residential character and tranquillity of Allandale Avenue by reason of the continuous presence of a commercial operation within a domestic garden. The proposal is therefore contrary to Policy CDH01 of the Adopted Barnet Local Plan (2025), Policy D3 of the London Plan (2021) and the NPPF (2025).
- 2 The commercial use of the pool outbuilding results in significant harm to the amenity of neighbouring residential properties, particularly due to noise disturbance from poolside activities, user arrivals and departures. The proposed operational hours, including evening and weekend use, are considered unacceptable in a densely populated residential area, exacerbating the potential for noise nuisance. This is contrary to Policy D3 of the London Plan (2021), Policies CDH01 and ECC02 of the Local Plan (2025) and the Residential Design Guidance SPD (2016).

INFORMATIVE(S):

- 1 The plans accompanying this application are:

Site Location Plan

Planning Statement dated 9th February 2025

Block Plan

HD758/9005 As Built Site Plan

HD758/9008 As Built Floor Plans

Industrial Noise Impact Assessment by Impact Acoustics Ref: IMP7903-1 dated August 2025

- 2 In accordance with paragraphs 38-57 of the NPPF, the Council takes a positive and proactive approach to development proposals, focused on solutions. To assist applicants in submitting development proposals, the Local Planning Authority (LPA) has produced planning policies and written guidance to guide applicants when submitting applications. These are all available on the Council's website. A pre-application advice service is also offered.

The applicant did not seek to engage with the LPA prior to the submission of this application through the established formal pre-application advice service. The LPA has discussed the proposal with the applicant/agent where necessary during the application process. Unfortunately the scheme is not considered to accord with the Development Plan. If the applicant wishes to submit a further application, the Council is willing to assist in identifying possible solutions through the pre-application advice service.

Date of Decision: 25 November 2025

Signed:



Fabien Gaudin

Director of Planning and Building Control

NOTE(S):

1. Your attention is drawn to the attached Schedule which sets out the rights of an applicant who is aggrieved by a decision of the Local Planning Authority.

2. This Notice relates solely to a planning decision and does not purport to convey any approval or consent which may be required under the Building Regulations or any other statutory purpose.

For more information about making a Building Regulations application, please contact the Barnet Council Building Control team by email (building.control@barnet.gov.uk), telephone (0208 359 4500), or see our website at www.barnet.gov.uk/building-control

3. For information on Construction Site Guidelines for Householders and Developers, please visit <https://www.barnet.gov.uk/citizen-home/environmental-health/pollution/construction-information.html>
4. For details relating to Street naming and numbering, please visit <https://www.barnet.gov.uk/citizen-home/planning-conservation-and-building-control/building-control/street-naming-and-numbering.html>

APPEAL GUIDANCE:

Should you (an applicant or agent) feel aggrieved by the decision of the Council to either refuse permission or to grant permission subject to conditions, you can appeal to the Secretary of State for the Department of Communities and Local Government – Sections 78 and 195 of the Town and Country Planning Act 1990 / Sections 20 and 21 of the Planning (Listed Buildings and Conservation Areas) Act 1990. Any such appeal must be made within the relevant timescale for the application types noted below, beginning with the date of the decision notice (unless an extended period has been agreed in writing with the Council):

- Six months: Full (excluding householder and minor commercial applications), listed building (including Certificate of Lawfulness in relation to a listed building), Section 73 'variation/removal', Section 73 'minor material amendment', extension of time and prior approval applications.
- 12 weeks: Householder planning, householder prior approval and minor commercial applications.
- 8 weeks: Advertisement consent applications
- No timescale: Certificate of lawful development (existing/proposed) applications.

Where an enforcement notice has been issued, the appeal period may be significantly reduced, subject to the following criteria:

- Where the development proposed by your application is the same or substantially the same as development that is the subject of an enforcement notice served within the last two years you must appeal within 28 days of the date of the application decision
- Where an enforcement notice is served on or after the decision date on your application relating to the same or substantially the same land and development as in your application and if you want to appeal against the Council's decision you are advised to appeal against the Enforcement Notice and to do so before the Effective date stated on the Enforcement Notice.

Appeals must be made using the prescribed form(s) of The Planning Inspectorate (PINS) obtained from www.planning-inspectorate.gov.uk or by contacting 03034445000. A copy of any appeal should be sent both to PINS and the Council.

The Secretary of State can allow a longer period for giving notice of an appeal, but will not normally be prepared to use this power unless there are exceptional special circumstances. The Secretary of State can refuse to consider an appeal if the Council could not have granted planning permission for the proposed development or could not have granted without the conditions it imposed, having regard to the statutory requirements and provision of the Development Order and to any direction given under the Order. In practice it is uncommon for the Secretary of State to refuse to consider appeals solely because the Council based its decision on a direction given by the Secretary of State.

PURCHASE NOTICES:

If either the Local Planning Authority or the First Secretary of State refuses permission to develop land or grants it subject to conditions, the owner may claim that he/she can neither put the land to a reasonably beneficial use in its existing state nor can he/she render that land capable of a reasonable beneficial use by carrying out of any development which has been or would be permitted. In these circumstances, the owner may serve a Purchase Notice on the District Council in whose area the land is situated. This notice will require the Council to purchase his interest in the land in accordance with the provisions of Part VI of the Town and Country Planning Act 1990.